

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Farrell Goldman	Team: Team # 2	CCRB Case #: 200104805	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 06/18/2001 5:00 PM	Location of Incident: § 87(2)(b)	Precinct: 52	18 Mo. SOL 12/18/2002	EO SOL 12/18/2002	
Date/Time CV Reported Thu, 06/28/2001 3:30 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/28/2001 3:30 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Jonathan Taormina	00000	900675	52nd Precinct
2. POM Thomas Alps	02049	926498	52nd Precinct
3. POM Michael Smyth	18093	927535	52nd Precinct

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sean Maloney	04123	884273	52nd Precinct
2. POF Doreen Saunders	26689	905002	52nd Precinct
3. POM Edward Schmanski	23731	905022	52nd Precinct

Officer(s)	Allegation	Investigator Recommendation
A.POM Michael Smyth	Abuse: Police Officer Michael Smyth entered and/or searched § 87(2)(b) s apartment.	§ 87(2)(b)
B.POM Thomas Alps	Abuse: Police Officer Thomas Alps entered and/or searched § 87(2)(b) s apartment.	§ 87(2)(b)
C.LT Jonathan Taormina	Abuse: Lt. Jonathan Taormina entered and/or searched § 87(2)(b) s apartment.	§ 87(2)(b)
D.LT Jonathan Taormina	Abuse: Lt. Jonathan Taormina seized § 87(2)(b) s property.	§ 87(2)(b)

Synopsis

On June 18, 2001, Police Officers Michael Smyth and Thomas Alps responded to a radio run directing them to § 87(2)(b), regarding reports of possible child abuse. When the officers arrived on the scene, they knocked on the front door of the apartment, and discovered that four children, aged between § 87(2)(b) had been left alone with no adult supervision. The officers asked the kids for permission to enter the apartment, and were granted it. § 87(2)(g) - the 911 call that initiated the radio run reported the kids had been playing on the fire escape, and the officers observed a fan on the floor of the apartment spinning on high, with no guards covering the whirling blades. The officers radioed in for a supervisor to respond, and Lt. Jonathan Taormina arrived on the scene. The officers then commenced to search through paperwork scattered in the apartment to search for a contact number for the parents. When § 87(2)(b) the children's father and the complainant in this case, arrived back at the apartment, he was arrested § 87(2)(a) 160.50. § 87(2)(b) Property was also seized from § 87(2)(b) during his arrest. § 87(2)(b) filed a complaint against the involved officers, claiming they wrongly entered his apartment and seized his property. § 87(2)(g)

Summary of Complaint

§ 87(2)(b) the complainant, called the CCRB on June 28, 2001, at 3:30 PM. (See UF245, encl. 7A-B). § 87(2)(b) told the CCRB's complaint hotline that when "he was arrested, his apartment was ransacked." He explained that he had been arrested § 87(2)(a) 160.50, and the officers "went through his belongings and into his children's drawers. They searched his cabinet, and desk looking for things. No search warrant was shown." § 87(2)(b) also stated that his prayer beads and cellular phone belt clip was taken by PO Saunders, PO Maloney had his necklace, and that he did not receive a voucher for his belongings, and that they were not returned.

§ 87(2)(b) was officially interviewed by the CCRB on July 2, 2001. (Encl. 8A-D). § 87(2)(b) who is a § 87(2)(b), stated that on June 18, 2001, he was home with his four children, § 87(2)(b). At approximately 5:00 PM, § 87(2)(b) decided to pick up some food from McDonald's for himself and his children. He called his friend § 87(2)(b) and asked him if he could watch his children while he § 87(2)(b) went to McDonald's, but § 87(2)(b) was unable to come over and watch the children. § 87(2)(b) then left the apartment, with the intention of driving to the McDonald's located at the intersection of § 87(2)(b). He left his children behind. When asked why he hadn't taken the children along with him, he told the investigator, "It was bad judgement on my part." (Encl. 8A). § 87(2)(b) told § 87(2)(b) where he was headed before he left.

It took § 87(2)(b) roughly 25-30 minutes to reach the McDonald's due to the heavy flow of traffic on § 87(2)(b). § 87(2)(b) went straight to the McDonald's, he did not make any prior stops. When he got to the restaurant, he had to wait on line at the drive through for a few more minutes. He then purchased his food, and drove back to his address, § 87(2)(b).

As he drove back home, he called his apartment on his cell phone to check on his kids. A man who identified himself as a police officer answered the phone. The officer asked § 87(2)(b) for his identity, and after § 87(2)(b) told him that he was the kids' father, the officer advised him to come straight home.

When § 87(2)(b) came back upstairs to his apartment, the front door was slightly ajar. He entered, and there were roughly five uniformed officers inside of the apartment, including a Lieutenant who identified himself as Taormina. There were also a couple of EMT's in the house speaking with his children. § 87(2)(b) would later find out from § 87(2)(b) that the officers had gained entry from knocking on the door and § 87(2)(b) letting them in. Lt. Taormina asked § 87(2)(b) questions pertaining to his § 87(2)(b)'s identity, and told § 87(2)(b) that the officers were in his apartment because § 87(2)(b) had left the house and the children were out on the fire escape. He also told § 87(2)(b) that the children had

been playing with a metal fan inside of the house, and were left alone with no food. Lt. Taormina also told § 87(2)(b) that he had left his children alone for “a couple of hours.”

§ 87(2)(b) felt as if these statements were “absurd.” He told the CCRB that he kept food in the house. He and his wife regularly buy food in bulk, and at the time that § 87(2)(b) left his kids alone, there was a 150 pound bag of rice in the apartment, as well as a big bottle of ketchup and a jug of mayonnaise. He also explained the fan that was on the floor was plastic, not metal. He also did not believe Lt. Taormina’s contention that the kids were on the fire escape. A glass pitcher had been broken on the fire escape previously, and shards of glass still remained on it. If the kids had been out on the fire escape, they most likely would have injured their bare feet. There were no injuries on the kids’ feet. The window to the fire escape was closed, and § 87(2)(b) stated that there are not childproof bars covering the window.

When Lt. Taormina asked § 87(2)(b) for ID, § 87(2)(b) handed him his wallet. The Lieutenant sifted through his wallet and removed § 87(2)(b)’s “Bounty Hunter Identification Card,” and his Security Guard certification card. § 87(2)(b)

Lt. Taormina then asked § 87(2)(b) if he could come to the 52nd Precinct to discuss the incident. § 87(2)(b) agreed, and at the request of the EMT’s, he assisted in getting his kids properly dressed. As § 87(2)(b) went into his kids’ bedroom he noticed that the next to last drawer in their bureau was open, but the contents were not strewn about. He also noticed some books located in the bookshelf in his living room had been moved. The books were not carelessly strewn about, but had been arranged in a different setting than usual. A zippered pouch in which § 87(2)(b) kept papers in had been removed from another bookshelf in the living room, and placed on the computer table. The pouch was open and papers were protruding from it.

After § 87(2)(b) got his kids dressed, and they had helped themselves to some McDonald’s, everyone went downstairs together. The kids went with the EMT’s in the ambulance to the hospital; § 87(2)(b) went with Lt. Taormina and his driver to the 52nd Precinct. He was not handcuffed during the ride. Lt. Taormina formally placed § 87(2)(b) under arrest at the precinct. While being searched at the front desk, § 87(2)(b)’s wooden beads, which hold a sentimental value to him, were taken. His cellular belt clip was taken from him, as well as a necklace comprised of a shoestring and a silver charm. These were taken by PO Doreen Saunders, who was later credited as being § 87(2)(b)’s arresting officer. He was told to come back for his vouchered items at a later date.

§ 87(2)(b) was then transported to Central Booking and to Court. The following day, his children were returned to him from ACS. On June 25, an employee from ACS, named § 87(2)(b) came to § 87(2)(b)’s apartment to discuss what had happened. § 87(2)(b) recommended that § 87(2)(b) enroll in family planning courses, but § 87(2)(b) has no pending action with ACS and no court dates in Family Court.

On June 20th, § 87(2)(b) went back to the precinct to retrieve his vouchered property. He spoke to the property clerk at the precinct who could not locate § 87(2)(b)’s items and could not find any record of § 87(2)(b)’s inventory in the property clerk log book. A few days later, § 87(2)(b) went back to the precinct, and was again unsuccessful in locating his property.

The investigator spoke with IAB regarding the property that was seized from § 87(2)(b). An IAB log was generated regarding § 87(2)(b)’s claims; the items contained on the log matched those which § 87(2)(b) complained of. On August 15th, § 87(2)(b) called the investigator, wanting to know how his case was progressing. During the course of the conversation, § 87(2)(b) told the investigator that he had since recovered all of his vouchered property, § 87(2)(b) from Bronx Central Booking.

Results of Investigation

Police Officer Interviews

Lt. Jonathan Taormina

Lt. Jonathan Taormina was identified by § 87(2)(b) as being the ranking officer on the scene, and was therefore interviewed by the CCRB on August 29, 2001. (Encl. 10A-D). Lt. Taormina told investigators that on the day of the incident, he was serving as the platoon commander inside the confines of the 52nd Precinct. Lt. Taormina explained that as the platoon commander, he handles administrative functions in the stationhouse, and responds to situations in the field. At approximately 6:00 PM, Lt. Taormina was requested to respond to § 87(2)(b). He and his operator, PO Schymanski drove to the location.

When the two officers responded to apartment § 87(2)(b), they found that two officers had already responded to the job. Lt. Taormina was not sure of the two officers' identities, describing them as "new officers" but believed they were the two cops assigned to patrol Sector K. The two officers, who were inside the apartment, told Lt. Taormina that they had been on the scene for approximately thirty minutes. A female witness was in the hallway of the § 87(2)(b), and told Lt. Taormina that she lived "next door." The two officers told Lt. Taormina that they had spoken with the woman, and based on their conversations with her and with the kids inside, the kids had been left alone with no supervision. Furthermore, two of the kids, § 87(2)(b), were seen playing on the fire escape by witnesses. The children were allegedly throwing stuffed animals off the fire escape. When the two officers first arrived at the apartment, they knocked on the front door and were allowed to enter the apartment by the oldest kid, after informing him that they were police officers. When the officers entered, they removed the two kids who were still on the fire escape. After determining that no adults were present in the household, the officers radioed in for a supervisor to respond to the scene. The female confirmed to Lt. Taormina that she had observed the kids on the fire escape.

Lt. Taormina described the interior of the apartment as "messy and filthy." There was no food in the refrigerator; however there were bowls of cereal all over on both the kitchen table and on the floor. On the floor of the apartment, a metal fan measuring approximately 2 1/2 feet by 2 1/2 feet was operating. There was no protective metal gate, preventing access to the twirling blades. In other words, the blades of the fan were exposed, with no barrier to prevent direct physical contact with them. Lt. Taormina unplugged the fan.

Two of the four young kids in the apartment were wearing soiled diapers. The oldest child, § 87(2)(b), told Lt. Taormina that his mother was at work, and he did not know where his father had gone. Lieutenant Taormina described the children as frightened, both at being left alone, and at the current situation they were in (police officers in their presence, with no parents around). § 87(2)(b) expressed his anxiety to Lt. Taormina that he was going to get in trouble with his father for letting the police into the apartment. Lt. Taormina told § 87(2)(b) not to be afraid, because he had done nothing wrong. Additionally, Lt. Taormina told him that he did "a good job," and that he was "just a kid." Lt. Taormina told investigators that although § 87(2)(b) was a nice kid, he was not of the age where he could tend to his younger siblings, judging from the conditions of the apartment, and from the kids' previous reported actions (i.e., climbing out onto the fire escape.) None of the kids had any visible injuries, nor did they complain to Lt. Taormina that they were injured or sick.

Lt. Taormina and the other officers then made efforts to locate the parents of the kids. The officers looked through the various paperwork that was scattered around the apartment, trying to find contact information for either parent. Specifically, the officers wanted to find pay stubs, cell phone bills, or something else that would indicate where the parents worked, or where they could be contacted at, or failing that, to locate other relatives that could take care of the children. They learned through some paperwork that § 87(2)(b) the mother, worked as § 87(2)(b). Lt. Taormina made calls on his

PO Alps and assigned to patrol Sector C. At around 4:30 PM, the officers received a radio run directing them to § 87(2)(b) to handle possible child abuse. When the officer pulled up in front of the building, they noticed that there were some toys, mostly stuffed animals, scattered around underneath the building's fire escape. The officers radioed back to their command for an apartment number, and were told that the apartment number was § 87(2)(b). When the officers looked at the § 87(2)(b) floor of the building, near the fire escape, they saw that the window leading to the escape was open, but no kids were situated on the fire escape.

The officers went upstairs to § 87(2)(b) and knocked on the door. A child around § 87(2)(b) answered the door, and the officers asked him if his parents were home. The child responded in the negative. § 87(2)(b) then came running up to the door and told his brother not to open the door for strangers. The officers told the kids that they were police officers, and that it was okay to open the door and let them inside. The children then allowed the officers to come inside. When the officers arrived, they noticed a police cap and a memo book in plain view on a shelf. Believing that one of the parents might have been a member of service, the officers called for a supervisor to respond to the scene. Officer Smyth also described the apartment as a "mess," and gave similar details regarding the fan (he claimed to have unplugged it before Lt. Taormina's arrival). One of the kids told the officers that their father had "gone to the store for a second."

As the officers waited for a supervisor's arrival, they tried to put the nervous kids at ease. The kids had been watching the Disney channel, and the officers made small talk with the kids, asking them about their favorite cartoons.

Lt. Taormina arrived about thirty minutes after the officers called for backup. Upon his and his operator's arrival, the officers proceeded to sort through the paperwork that was scattered throughout the house, trying to find contact numbers for the parents. The officers managed to find a cell phone number for § 87(2)(b) but it had been disconnected when they attempted to call it. About an hour after Lt. Taormina's arrival, § 87(2)(b) called the house, and spoke with one of the officers. About five minutes after he called, § 87(2)(b) arrived home with the McDonald's. He appeared "shocked" to find the officers and EMS in his apartment. While speaking with Lt. Taormina, § 87(2)(b) told him (Taormina) "I was only gone for a couple of minutes," to which Lt. Taormina responded, "I've been here for an hour, would you like to change your story?" PO Smyth and Alps went with the kids, while § 87(2)(b) went with Lt. Taormina.

Police Officer Thomas Alps

Police Officer Thomas Alps was not interviewed by the CCRB until December 7, 2001 (encl. 14A-C), due to the events of September 11th. § 87(2)(g) . He identified them during his interview as § 87(2)(b) . § 87(2)(b) told him that they had been informed by a female postal carrier that kids were playing on a fire escape. § 87(2)(b) claimed to have seen the kids out on the fire escape.

While questioning the kids in the apartment, the kids admitted that they had been out on the fire escape, but did not admit to throwing the plush toys off of it. Like PO Smyth, PO Alps described the apartment as a mess, and believed that the kids might have actually been eating ice cream off the floor. § 87(2)(b) told the officers that his mother worked § 87(2)(b), so the officers looked on top of some dressers in the living room, a desk in one of the back rooms, and several other drawers looking for an address book or for a phone number to § 87(2)(b) where the mother supposedly worked. The officers were unable to locate a contact number during the search. They continued to search after Lt. Taormina and his operator joined them.

While they were in the apartment, the phone rang. PO Alps picked up the phone, and identified himself as an officer. The caller then hung up. About 20 minutes after the first call, the phone rang again, and PO Alps again answered it. § 87(2)(b) was on the line. Officer Alps told § 87(2)(b) that he had to come back to his apartment ASAP, but that everything (the kids) were alright.

When § 87(2)(b) came home, he told the officers that he had only been gone for around fifteen minutes. The officers told him that they had been there since around 5:30, and that the kids told them that they had been left alone for an hour prior to the officers arrival. § 87(2)(b) reacted nervously to that news, § 87(2)(b)

PO Saunders and PO Schymanski were not interviewed. § 87(2)(g)

Police Documents

The complaint report (UF61, encl. 15A-B) indicated that § 87(2)(b) left four children § 87(2)(b) home alone with no adult supervision at § 87(2)(b). At 7:00 PM, he endangered the welfare of a child.

The command log (encl. 16A-B) indicated that § 87(2)(b) was brought into the 52nd Precinct at 1905 hours (7:05 PM) and that he was removed to Central Booking at 2145 hours (9:45 PM). He was charged § 87(2)(a) 160.50, and in the "Remarks" section, it was noted that his "Children removed to § 87(2)(b)." It was later noted in the command log that PO Saunders removed the children to § 87(2)(b).

The online booking sheet (encl. 17A-E) indicated that § 87(2)(b) was charged § 87(2)(a) § 87(2)(b). His arresting officer was Doreen Saunders.

The roll call (encl. 18A-C) indicated that Lt. Taormina was assigned as the platoon supervisor on June 18, 2001. His operator was PO Schymanski. PO Smyth and PO Alps were assigned to patrol sector C in RMP 2096.

A 911 call (encl. 19A) was made by a female caller by the name § 87(2)(b) from a friend's cell phone at 5:03 PM. § 87(2)(b) reported that a baby was hanging out of the window of the § 87(2)(b) apartment at § 87(2)(b). The baby had been wearing a diaper, and was back inside the apartment at the time the call was made. § 87(2)(b) told the 911 operator that she went over to the apartment and spoke to the kids through the door; the kids told her that they were left alone, unsupervised, but would not open the door for her. She approximated that there were four or five kids in the apartment, and the kids told her through the door that they did not know where their parents were. § 87(2)(b) told the operator that she lived across the street, and that she would meet the cops in front of the incident location, but there was no call back number listed on the report regarding the cell phone, and no address listed for § 87(2)(b).

The Sprint printout (encl. 20A) generated indicated that Sector C received the radio run at 1728 hours (5:28 PM). They arrived on the scene at 1733 hours (5:33 PM). Eleven minutes later, they requested that a sergeant respond to the scene. Lt. Taormina arrived on the scene at 1835 hours (6:35 PM). EMS was then requested to come to the location. At 1909 hours (7:09 PM) Lt. Taormina was back at the stationhouse with § 87(2)(b) in tow.

Property Voucher # § 87(2)(b) (encl. 21A) lists the property that was taken from § 87(2)(b). A cell phone clip, a set of brown beads, a "string with a bell," five ID cards, a black wallet, and papers from the DMV, were taken from § 87(2)(b) and vouchered for safekeeping. § 87(2)(b)

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

Record requests stated that a domestic incident report was not filed in conjunction with the incident. (See Records Requests).

Conclusions and Recommendations

The facts are not in dispute in this case. § 87(2)(g)

§ 87(2)(b) believed that the officers shouldn't have entered his apartment, and stated that no search warrant was shown to him. § 87(2)(g)

§ 87(2)(b) § 87(2)(b) The kids were throwing toys off of the fire escape based upon the neighbors' observations as well as the officers' (viewing the toys assembled on the ground). The officers from the ground floor observed that the window leading to the fire escape was wide open. § 87(2)(g)

§ 87(2)(g) According to the Kamins' Search and Seizure, "A major exception to the search warrant requirement is the 'exigent circumstances' doctrine. Under this doctrine, New York courts will permit the warrantless search of premises under certain exceptional circumstances. In each of these circumstances, the police officer has probable cause to search, but because of the urgency of the particular situation, he does not have the time to obtain a warrant." (Encl. 2A).

According to the *Emergency Doctrine* clause, "a police officer can enter a premises without a warrant to protect individuals in distress, to assist victims of crimes that have just occurred or to investigate suspicious signs of impending danger." (Encl. 2B). It also states that "courts will apply the emergency doctrine when the police must enter a premise to ensure the safety of children." (Encl. 2C).

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A: Police Officer Michael Smyth entered and/or searched § 87(2)(b) s apartment.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation B: Police Officer Thomas Alps entered and/or searched § 87(2)(b) s apartment.

§ 87(2)(g) [REDACTED].

Allegation C: Lieutenant Jonathan Taormina entered and/or searched § 87(2)(b) s apartment.

§ 87(2)(g) [REDACTED].

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
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[REDACTED]
[REDACTED]
[REDACTED]

Allegation D: Lieutenant Jonathan Taormina seized § 87(2)(b) s property.

§ 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
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Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: